

119th CONGRESS  
2d Session

**H.R. \_\_\_\_\_**

IN THE HOUSE OF REPRESENTATIVES

Introduced by \_\_\_\_\_

## **A BILL**

To establish an Independent Commission on the Jeffrey Epstein Investigation, mandate a forensic reinvestigation of Epstein's death in federal custody, require full and unredacted disclosure of all related federal records, authorize cooperation with State Attorneys General and Territorial Law Enforcement Officers — including the Attorney General of the United States Virgin Islands and the Secretary of Justice of the Commonwealth of Puerto Rico — as co-investigators, direct a congressional investigation into the 2007 non-prosecution agreement, and provide justice and legal remedies for survivors of Epstein's trafficking network, and for other purposes.

## **SHORT TITLE; TABLE OF CONTENTS.**

**(a) SHORT TITLE.**— This Act may be cited as the "Epstein Accountability and Survivor Justice Act of 2026" or the "EASJA Act".

**(b) TABLE OF CONTENTS.**— The table of contents for this Act is as follows:

- Sec. 1. Short title; table of contents.
- Sec. 2. Congressional findings.
- Sec. 3. Definitions.
- Sec. 4. Independent Commission; State AG and Territorial Law Enforcement Officer cooperation.
- Sec. 5. Forensic reinvestigation of Epstein's death in federal custody.
- Sec. 6. Full and unredacted disclosure of federal Epstein records.
- Sec. 7. Congressional investigation of the 2007 non-prosecution agreement.
- Sec. 8. Survivor justice and legal remedies.
- Sec. 9. Whistleblower protections.
- Sec. 10. Systemic reforms.
- Sec. 11. Authorization of appropriations.

## **SEC. 2. CONGRESSIONAL FINDINGS.**

The Congress finds the following:

- (1) Jeffrey Epstein died on August 10, 2019, while held in federal custody at the Metropolitan Correctional Center in New York. The New York City Chief Medical

Examiner ruled the manner of death a suicide by hanging; however, independent forensic experts, including Dr. Michael Baden, have publicly disputed that conclusion and identified physical evidence inconsistent with hanging by suicide.

- (2) Surveillance footage from the area of Epstein's cell on the night of his death was unavailable to investigators. Guard logs from that night contained falsified entries. Two correctional officers on duty were subsequently charged with federal crimes related to falsifying records.
- (3) In 2007, federal prosecutors in the Southern District of Florida negotiated a non-prosecution agreement (NPA) with Jeffrey Epstein that resulted in Epstein pleading guilty only to state charges and shielded his co-conspirators from federal prosecution for more than a decade. The agreement was characterized by a federal judge in 2019 as having violated the Crime Victims' Rights Act.
- (4) The Epstein Files Transparency Act (Public Law 119-38), signed into law on November 19, 2025, required the Department of Justice to release unclassified documents. Releases conducted under that Act have been criticized by survivors, members of Congress of both parties, and independent experts for incomplete compliance, improper redactions, and failure to identify individuals implicated in Epstein's criminal network.
- (5) Survivors of Epstein's trafficking network have reported abuse over a period spanning more than two decades. Many survivors have faced expiration of applicable statutes of limitations as a direct result of the institutional concealment described in this section.
- (6) Congress has constitutional authority and institutional responsibility to investigate the conduct of federal agencies — including the Department of Justice, the Federal Bureau of Investigation, and the Bureau of Prisons — in their handling of the Epstein case, and to legislate reforms necessary to prevent the recurrence of similar systemic failures.
- (7) The failures described in this section represent not merely an isolated case of prosecutorial discretion but a pattern of institutional conduct that has shielded powerful individuals from accountability, denied justice to survivors, and undermined public trust in federal law enforcement.
- (8) Significant evidence and investigative records relevant to the Epstein case exist at the state and territorial level, including files held by the Palm Beach County Sheriff's Office and the Florida Department of Law Enforcement relating to investigations predating federal involvement; records in New York and New Mexico corresponding to locations where Epstein's trafficking network operated; records held by the Attorney General of the United States Virgin Islands relating to Epstein's private properties and trafficking activities on Little Saint James and Great Saint James; and any records held by the Secretary of Justice of the Commonwealth of Puerto Rico relating to Epstein's network, associates, or activities within or transiting through the Commonwealth. Full accountability requires coordination with the relevant State Attorneys General and Territorial Law Enforcement Officers, who possess independent investigative authority and access to records outside federal control.

### **SEC. 3. DEFINITIONS.**

In this Act:

**(1) COMMISSION.**— The term "Commission" means the Independent Commission on the Jeffrey Epstein Investigation established under section 4.

**(2) COVERED RECORDS.**— The term "covered records" means all documents, communications, surveillance footage, investigative files, evidence logs, prosecutorial memoranda, grand jury materials (to the extent permitted by Rule 6(e) of the Federal Rules of Criminal Procedure), and related materials in the possession or control of any federal agency relating to Jeffrey Epstein, his associates, his trafficking network, the 2007 non-prosecution agreement, or the circumstances of his death.

**(3) EPSTEIN FILES TRANSPARENCY ACT.**— The term "Epstein Files Transparency Act" means Public Law 119-38, enacted November 19, 2025.

**(4) SURVIVOR.**— The term "survivor" means any individual who was a victim of sexual abuse, sex trafficking, or related offenses committed by Jeffrey Epstein or any person associated with his trafficking network.

**(5) COVERED STATE RECORDS.**— The term "covered state records" means documents, investigative files, communications, and evidence in the possession or control of any State or territorial law enforcement agency, State or territorial Attorney General's office, Secretary of Justice's office, or prosecutor's office relating to Jeffrey Epstein, his associates, his trafficking network, any state or territorial-level prosecution or investigation of Epstein or his associates, or any communications with federal prosecutors regarding the 2007 non-prosecution agreement.

**(6) RELEVANT STATES AND TERRITORIES.**— The term "relevant States and territories" means Florida, New York, New Mexico, the United States Virgin Islands, the Commonwealth of Puerto Rico, and any other State or territory in which Jeffrey Epstein or members of his trafficking network are alleged to have committed offenses, as determined by the Commission.

**(7) TERRITORIAL LAW ENFORCEMENT OFFICERS.**— The term "Territorial Law Enforcement Officers" means (A) the Attorney General of the United States Virgin Islands, who serves as the chief law enforcement officer of that territory and is a member of the National Association of Attorneys General; and (B) the Secretary of Justice of the Commonwealth of Puerto Rico (Secretario/a de Justicia de Puerto Rico), who serves as the chief law enforcement officer of Puerto Rico, is established by Article IV of the Constitution of Puerto Rico, and is a member of the National Association of Attorneys General. Each Territorial Law Enforcement Officer shall have the same standing and authority under this Act as any State Attorney General.

#### **SEC. 4. INDEPENDENT COMMISSION ON THE EPSTEIN INVESTIGATION.**

**(a) ESTABLISHMENT.**— There is established an independent commission to be known as the "Independent Commission on the Jeffrey Epstein Investigation".

**(b) PURPOSE.**— The Commission shall conduct a comprehensive, independent investigation into (1) the circumstances of Jeffrey Epstein's death in federal custody; (2)

the handling of the federal investigation of Epstein and his trafficking network from 1994 through the present; (3) the negotiation, terms, and implementation of the 2007 non-prosecution agreement; and (4) the compliance of federal agencies with the Epstein Files Transparency Act.

**(c) COMPOSITION.**— The Commission shall be composed of 9 members appointed as follows: (1) 3 members appointed by the Speaker of the House of Representatives, in consultation with the House Minority Leader; (2) 3 members appointed by the Senate Majority Leader, in consultation with the Senate Minority Leader; and (3) 3 members appointed by the Chief Justice of the United States. No more than 5 members may be of the same political party. All members shall be independent of the Department of Justice and any law enforcement agency involved in the original Epstein investigation.

**(d) SUBPOENA AUTHORITY.**— The Commission shall have the power to issue subpoenas for documents, testimony, and evidence. Failure to comply with a Commission subpoena without lawful excuse shall be subject to the same penalties as provided in 2 U.S.C. § 192.

**(e) ACCESS TO RECORDS.**— Notwithstanding any other provision of law, all federal agencies shall provide the Commission with access to all covered records within 60 days of the Commission's request, including records previously withheld from public release. The Commission may review classified materials in a secure setting.

**(f) SURVIVOR PARTICIPATION.**— The Commission shall establish a survivor advisory panel of not fewer than 5 survivors to advise the Commission on its procedures, ensure that its work centers survivor voices and experiences, and review any recommendations before final publication.

**(g) REPORT.**— Not later than 18 months after the date of first appointment of Commission members, the Commission shall submit to Congress and the President a final report that includes (1) findings of fact; (2) identification of any institutional failures by federal agencies; (3) specific legislative and regulatory recommendations; and (4) a full public appendix. The report shall be made publicly available in unredacted form except for information that would directly identify living survivors who have not consented to identification.

**(h) STATE ATTORNEY GENERAL AND TERRITORIAL LAW**

**ENFORCEMENT OFFICER COOPERATION.**— The Commission is authorized to coordinate with the Attorneys General of the relevant States and the Territorial Law Enforcement Officers (as defined in section 3(7)) as co-investigators for purposes of this Act. The following shall apply:

**(1) FORMAL REFERRAL MECHANISM.**— The Commission may formally request the cooperation of any State Attorney General or Territorial Law Enforcement Officer, including requests for access to covered state records, testimony from state or territorial law enforcement personnel, and the sharing of investigative findings. Such requests shall be made in writing and shall specify the records or cooperation sought.

**(2) LIAISON DESIGNATION.**— A State Attorney General or Territorial Law Enforcement Officer who elects to participate may designate one or more senior attorneys or investigators as official liaisons to the Commission. Designated liaisons

shall have full access to Commission proceedings that do not involve classified federal materials, shall be entitled to attend and participate in relevant Commission hearings, and may submit findings and recommendations for inclusion in the Commission's final report.

**(3) VOLUNTARY PARTICIPATION; FEDERALISM.**— Nothing in this subsection shall be construed to mandate the participation of any State, territory, or their respective law enforcement officers, to compel the production of records protected under State or territorial law, or to infringe upon the sovereign authority of any State or territory. The Commission shall accommodate the legal constraints of participating jurisdictions and shall seek to enter into memoranda of understanding with each participating State or territory to govern the terms of record-sharing and personnel cooperation.

**(4) PRIORITY JURISDICTIONS.**— The Commission shall, within 60 days of its formation, formally invite the Attorneys General of Florida, New York, and New Mexico; the Attorney General of the United States Virgin Islands; and the Secretary of Justice of the Commonwealth of Puerto Rico to participate as co-investigators pursuant to this subsection. The Commission's final report shall document whether each invited jurisdiction accepted or declined participation and, if declined, the stated reason.

**(5) FLORIDA RECORDS.**— The Commission shall specifically request from the Florida Attorney General all records in the possession of the Palm Beach County Sheriff's Office and the Florida Department of Law Enforcement relating to investigations of Jeffrey Epstein or his associates conducted prior to 2006, and all communications between Florida law enforcement or prosecutorial officials and federal authorities regarding the 2007 non-prosecution agreement.

**(6) UNITED STATES VIRGIN ISLANDS RECORDS.**— The Commission shall specifically request from the Attorney General of the United States Virgin Islands all territorial records relating to Epstein's private properties on Little Saint James and Great Saint James, records relating to the \$105 million settlement with the Epstein estate and the forfeiture of those properties, and all communications between territorial and federal law enforcement or prosecutorial officials regarding Epstein's activities in the territory. The Commission shall also examine the circumstances of the termination of the USVI Attorney General who filed litigation against financial institutions alleged to have facilitated Epstein's trafficking network.

**(7) COMMONWEALTH OF PUERTO RICO.**— The Commission shall formally invite the Secretary of Justice of the Commonwealth of Puerto Rico to participate as a co-investigator. The Secretary of Justice of Puerto Rico is the chief law enforcement officer of the Commonwealth, established by Article IV of the Constitution of Puerto Rico, and holds full equivalent standing to a State Attorney General for purposes of this Act. The Commission shall request any records in the possession of Puerto Rico law enforcement or prosecutorial offices relating to Epstein's network, associates, or activities within or transiting through the territory.

**(i) SUNSET.**— The Commission shall terminate 90 days after submission of its final report.

## **SEC. 5. FORENSIC REINVESTIGATION OF EPSTEIN'S DEATH IN FEDERAL CUSTODY.**

**(a) IN GENERAL.**— Not later than 90 days after the date of enactment of this Act, the Attorney General shall contract with an independent forensic panel — composed of board-certified forensic pathologists, forensic experts, and independent investigators with no prior involvement in any federal Epstein investigation — to conduct a comprehensive forensic reinvestigation of Jeffrey Epstein's death.

**(b) SCOPE.**— The forensic panel shall examine all available physical evidence, investigative reports, autopsy records, toxicology findings, and surveillance records. The panel shall have the authority to exhume and re-examine remains if the panel determines such examination is necessary and the next of kin consent or a court order is obtained.

**(c) INDEPENDENCE.**— No member of the forensic panel may be an employee or contractor of the Department of Justice, the Bureau of Prisons, or the Federal Bureau of Investigation.

**(d) PUBLIC REPORT.**— Not later than 12 months after convening, the forensic panel shall deliver a written report of findings to the Commission and to Congress. The report shall be made public in full except for any information that would directly identify living survivors.

## **SEC. 6. FULL AND UNREDACTED DISCLOSURE OF FEDERAL EPSTEIN RECORDS.**

**(a) SUPPLEMENTAL DISCLOSURE REQUIRED.**— Notwithstanding the Epstein Files Transparency Act, the Attorney General shall, not later than 120 days after enactment of this Act, produce a complete and unredacted release of all covered records not previously released. Redactions shall be permitted only for (1) information that would directly identify a living survivor who has not consented to identification, and (2) information that would directly endanger an ongoing prosecution of a person other than Jeffrey Epstein. No redaction shall be made for the purpose of protecting any public official, political figure, or private individual associated with Epstein's network.

**(b) COMPLIANCE AUDIT.**— The Commission shall conduct an independent audit of all prior disclosures made under the Epstein Files Transparency Act to assess whether those disclosures were complete and lawfully redacted, and shall report any deficiencies to Congress within 90 days of the Commission's formation.

**(c) JUDICIAL REVIEW.**— Any person may seek judicial review in the United States District Court for the District of Columbia of any redaction made under this section. The government shall bear the burden of demonstrating that any withheld information meets the narrow exemptions set forth in subsection (a).

## **SEC. 7. CONGRESSIONAL INVESTIGATION OF THE 2007 NON-PROSECUTION AGREEMENT.**

**(a) INVESTIGATION DIRECTED.**— The Committee on the Judiciary of the House of Representatives and the Committee on the Judiciary of the Senate are each directed to conduct an investigation into (1) the negotiation and terms of the non-prosecution agreement entered into between federal prosecutors and Jeffrey Epstein in 2007; (2) the identities of all federal officials who participated in, approved, or were informed of the negotiations; (3) whether the agreement was designed to or did in fact shield third parties from prosecution; and (4) whether any improper pressure, communication, or consideration influenced the terms of the agreement.

**(b) REPORT.**— Each committee shall submit to the full Congress a report of findings and recommendations not later than 18 months after the date of enactment of this Act.

## **SEC. 8. SURVIVOR JUSTICE AND LEGAL REMEDIES.**

**(a) REVIVAL OF CIVIL CLAIMS.**— Notwithstanding any other provision of law, any civil claim by a survivor arising from sexual abuse, sex trafficking, or related offenses committed by Jeffrey Epstein or members of his trafficking network that was previously time-barred is hereby revived. Such claims may be brought in any federal district court within 5 years of the date of enactment of this Act.

**(b) CLAIMS AGAINST THE UNITED STATES.**— A survivor may bring a civil action against the United States under the Federal Tort Claims Act for damages arising from the negligence or deliberate indifference of federal employees in the investigation of Epstein and the protection of survivors.

**(c) VICTIM NOTIFICATION.**— Not later than 180 days after the date of enactment of this Act, the Department of Justice shall, to the extent it can identify known survivors, notify them of their rights under this section and any other applicable provision of law.

**(d) LEGAL AID.**— The Secretary of Health and Human Services shall establish a grant program to provide legal assistance to survivors seeking to pursue claims under this section. There is authorized to be appropriated \$10,000,000 for each of fiscal years 2026 and 2027 for this purpose.

## **SEC. 9. WHISTLEBLOWER PROTECTIONS.**

**(a) PROTECTIONS.**— Any federal employee who discloses to the Commission, to Congress, or to the Inspector General of any federal agency information relating to (1) the investigation of Jeffrey Epstein; (2) the circumstances of his death; (3) the 2007 non-prosecution agreement; or (4) any suppression, destruction, or alteration of evidence related to the foregoing, shall be afforded the full protections of the Whistleblower Protection Act of 1989 (5 U.S.C. § 2302).

**(b) ANTI-RETALIATION.**— No federal officer or employee shall take any adverse personnel action against a federal employee on account of any disclosure protected under this section. Violations shall be subject to the penalties set forth in 5 U.S.C. § 2302(b).

## **SEC. 10. SYSTEMIC REFORMS.**

**(a) FEDERAL CUSTODY PROTOCOLS.**— Not later than 180 days after the date of enactment of this Act, the Director of the Bureau of Prisons shall promulgate regulations requiring (1) uninterrupted, multi-angle video surveillance of any cell housing a high-profile detainee who has been placed on suicide watch or removed from suicide watch within the preceding 14 days; (2) mandatory independent review of any in-custody death of a high-profile detainee; and (3) preservation of all surveillance footage for a minimum of 5 years following any in-custody death.

**(b) NON-PROSECUTION AGREEMENT TRANSPARENCY.**— Section 3553 of title 18, United States Code, is amended to require that any non-prosecution or deferred prosecution agreement negotiated by a United States Attorney that (1) benefits a defendant facing charges carrying a maximum penalty exceeding 10 years and (2) includes provisions benefiting persons other than the named defendant, shall be filed with the Chief Judge of the relevant federal district court and made publicly available within 30 days of execution.

**(c) INSPECTOR GENERAL REVIEW.**— The Inspector General of the Department of Justice and the Inspector General of the Department of Homeland Security shall each conduct an audit of internal protocols relating to the handling of sex trafficking investigations involving high-profile individuals and shall submit recommendations for reform to Congress not later than 1 year after the date of enactment.

## **SEC. 11. AUTHORIZATION OF APPROPRIATIONS.**

There is authorized to be appropriated to carry out this Act (other than section 8(d)) \$25,000,000 for each of fiscal years 2026 and 2027, to remain available until expended.

**— END OF BILL —**